

To,

Dated : 10.10.2022

Mr. Manish Kumar Gupta and 128 others  
(Authorised Representative vide LOA dated  
01.12.2020) Registered Office at  
S/O Late Sh. Ram Sewak Gupta  
R/O A-1/538, Sector-6 Rohini  
New Delhi-110085

Dear Sir/Madam,

**Subject- Offer for Settlement of your claim in Ajnara Ambrosia,  
Real Estate Project of Ajnara India Limited  
Ref- National Company Law Tribunal (NCLT) New Delhi Bench  
(Court-II) order dated 20.09.2022 in Petition no.(IB)-  
194(ND)/2021**

I, Ashok Kumar Gupta, on behalf of the management (now suspended in consequent to the captioned order) of Ajnara India Limited take this opportunity to offer for settlement of claim and proposal for handing over the possession of units/flats to applicants /allottees who booked and purchased the Units(s) in Ajnara Ambrosia project of the company at Plot no.GH-01 Sector 118, Gautam Budh Nagar , Noida , Uttar Pradesh.

Before I put forth the terms of settlement, it is worthwhile to state here that Ajnara India Limited has been in the business of construction of real estate project since 1991. The company has earned the reputation and credibility of timely delivery of all its projects with some exceptions primarily due to unforeseen circumstances, which were beyond the control of management of Ajnara. Here in the case of Ajnara Ambrosia project the delay in delivery has occurred due to certain unforeseen external factors,

Ajnara India Limited

U01111DL1991PLC046358

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which are well known to Homebuyers. In spite of unfavourable circumstances beyond the control of management, the company have been able to offer possession to all allottees of Tower F & H (including 17 allottees represented by you) of Ajnara Amborsia Project already during this intervening period before admission of AIL for CIRP.

In order to carry on the legacy and credibility of timely delivery & compelling circumstances, the management hereby offers settlement and seek your favourable indulgence on the following terms-

1. Allottees/applicants willing to acquire their respective units/flats in all 10 towers (A, B, C, D, E, F, G, H, J, K) of Ajnara Ambrosia will be handed over the possession over a period of six months extending to nine months (i.e. with three months of grace period) from the date of resumption of construction activity once the present settlement is entered and accepted in due process. The suspended management shall do so with their own resources and therefore the remaining dues shall be payable by allottees to the company in two instalments one before and other at the time of possession only.
2. Allottees/applicants desirous of refund of their deposits and not willing to acquire the unit(s), will be paid their entire respective dues within three to four months from the date of due orders in terms of present settlement.

We humbly submit Sir, If accepted, you and other allottees/applicants represented by you and allottees of Ajnara Ambrosia would not pursue further for Corporate Insolvency Resolution Process(CIRP) of Ajnara India Limited ordered vide the above referred order of NCLT and support the effort of the company to reverse/withdraw the said insolvency proceedings by taking appropriate steps.

In case the allottees/applicants have any other alternate settlement

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proposal that they would like to discuss, the undersigned is open to further discussion on the same.

In case of acceptance of the above said offer of settlement, you and on behalf of other applicants/allottees, kindly may confirm to the undersigned endorsing the confirmation of acceptance of this offer, marking a copy to Mr. Amarpal (Interim Resolution Professional) appointed in this matter. This settlement will be subject to mutually agreeable terms & conditions and the offer stands without prejudice to the rights and contentions of the parties.

Please acknowledge and revert with an early and favourable response.



(Ashok Kumar Gupta)

Suspended Director

Ajnara India Limited

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**ANNEXURE-13 (Colly.)**

June 22, 2022

To,

Ajnara India Ltd.  
D-247/26, Sector-63,  
Noida, Uttar Pradesh

**Subject: Disbursal of funds for making payment to New Okhla Industrial Development Authority ("NOIDA") towards sub-division of group housing plot no. GH-01, admeasuring 1,42,967 sq. mtrs. situated in Sector 118, NOIDA, District Gautam Budh Nagar, Uttar Pradesh ("Project Land")**

**Reference: Your letter dated 21<sup>st</sup> June 2022**

Dear Sir,

We are in receipt of your letter dated 21<sup>st</sup> June 2022 vide which you have requested us to disburse Rs 50,00,00,000/- (Rupees Fifty Crores only) for the purpose of making payment to NOIDA. We understand that NOIDA has sought these funds to:

- i. Sub - divide the Project Land; and
- ii. Transfer the ownership of portion of the Project Land admeasuring 74,946 Sq. Mtrs., ("Ajnara Plot") in favour of Ajnara India Ltd. from IVR Prime Developers (Avadi) Pvt. Ltd.

We are in-principle agreeable to consider your request subject to receipt of requisite internal approvals and applicable laws and regulations.

Thanking You

For L&amp;T Finance Ltd.

*Ruchir Jain*  
(Authorised Signatory)



**L&T Finance Limited**  
**Correspondence Address**  
5th Floor, DCM Building,  
16, Barakhamba Road, Cannaught Place,  
New Delhi 110 001

**Registered Office**  
7th Floor, Technopolis, A-Wing  
Plot No 4, Block-BP, Sector-V  
Salt Lake, Kolkata 700 091  
CIN: U65910WB1993FLC060810

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**IVR PRIME DEVELOPERS (AVADI) PVT. LTD.**Regd. Office: M-22/3RT, VIJAY NAGAR COLONY HYDERABAD, TELANGANA-500057

Corporate Office: B-28-29 Sector -58 NOIDA 201307 UP

CIN NUMBER: U45200TG2008PTC059512

Date: 23.06.2022

To,

Chief Executive Officer  
New Okhla Industrial Development Authority  
Sector-6,  
Noida

Sub: Letter issued by L&amp;T Financial Limited

Ref: Our Letter dated 17.02.2022 for Permission for Sub-Division of GH Plot No. GH-01, Sector-118, Noida

Respected Madam,

This is reference to our letter dated 17.02.2022 by which we sought permission for sub-division of Plot No. GH-01, Sector-II 8, Noida, we are attaching letter issued by L&T Finance Limited regarding in-principal agreeable to comply the requirement for sub-division of Plot No. GH-01, Sector 118, Noida.

This is for your information please.

Thanking you

For IVR Prime Developers (Avadi) Pvt. Ltd.

  
(Authorized Signatory)  
add (GH)  
GM planning